

26STCV20614 26STCV20614

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

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Case Number: 26STCV20614 Hearing Date: August 10, 2026 Dept: 512

HEARING DATE: Mon., August 10, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Goddard

v. Cummings COMP. FILED: 06-30-26

CASE NUMBER: 26STCV20614

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL ACCESS AND REQUEST FOR SANCTIONS

MOVING PARTY: Plaintiff

Daniel Goddard

RESP. PARTY: None

MOTION TO COMPEL ACCESS

(Civ. Code, § 1954)

TENTATIVE RULING:

Plaintiff Daniel Goddard's unopposed

Motion to Compel Access and for Monetary Sanctions is GRANTED as to the request to compel Plaintiff's access to real property as limited herein and DENIED as to the request for sanctions.

Plaintiff is to submit a new Proposed
Order in conformance with the Court's ruling herein within 5 days of this
Court's Order.

Moving party
is ordered to give notice.

SERVICE:

☒ Proof of Service Timely
Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§
1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August 6,
2026 [
] Late ☒ None

REPLY: None filed as
of August 6, 2026 []
Late ☒ None

ANALYSIS:

I.
Background

On June 30, 2026, Plaintiff Daniel
Goddard ("Plaintiff"), proceeding pro se, filed the instant Unlawful Detainer
action against Defendant Rexx Cummings ("Defendant") and Does 1-7.

On July 14, 2026, Plaintiff filed the
instant Motion to Compel Access and for Monetary Sanctions (the "Motion").

On July 24, 2026, Defendant,
proceeding pro se, filed an Answer.

On August 3, 2026, Plaintiff filed a Supplement and Supplemental Declaration in support of the Motion.

That same day, the Court, in pertinent part, advanced the Motion hearing from October 8, 2026, to August 10, 2026. (8/3/26 Order.)

No Opposition has been filed.

II.

Procedural
Issues

As an initial matter, the Court notes the Motion's proof of service states the incorrect zip code for Defendant's mailing address. However, given that the remainder of the service address is accurate, the Court finds service is satisfactory and proceeds to address the Motion on the merits.

III.

Legal
Standard & Discussion

Plaintiff moves to compel access to Plaintiff's statutory right of access to the premises located at 746 S. Los Angeles Street, Unit 1201, Los Angeles, California (the "Premises"). (Motion, pp. 1-2, 14.) Plaintiff contends Plaintiff is the owner of the Premises, and Defendant is a tenant, and Defendant has obstructed Plaintiff's access to the Premises. (Motion, pp. 1-2, 14.) Specifically, Defendant has not allowed Plaintiff to access the Premises following Plaintiff's provision to Defendant of 24 hour notice to access the property for repairs and/or improvements. (Motion, Exh. List.) Further, Plaintiff contends "Defendant physically disabled the door code (May 19, 2026); Defendant responded to a properly noticed entry with an express written threat of violence (May 19, 2026); Defendant initiated witness-intimidation contact with Plaintiff's representative (July 11, 2026); Defendant sent Plaintiff a late-night, staged 'Got Goddard' photograph paired with a text message declaring that 'the harassment and retaliation continue' (July 11, 2026); and Defendant has publicly signaled his intent to leave the Property destroyed (March 17, 2026 Facebook post)." (Motion, p. 14.) Plaintiff submits a

declaration and various exhibits in support of the Motion as well as a Supplement and Supplemental Declaration.

Access to Premises

Civil Code section 1954 provides that a landlord may enter a dwelling unit in case of emergency; “[t]o make necessary or agreed repairs, decorations, alterations or improvements, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workers, or contractors or to make an inspection pursuant to subdivision (f) of Section 1950.5”; when the tenant has abandoned or surrendered the premises; pursuant to court order; for the purposes set forth in Chapter 2.5; or to comply with the provisions of Article 2.2 of Chapter 5 of Part 1.5 of Division 13 of the Health and Safety Code. (Civ. Code, § 1954, subd. (a), emphasis added.)

Unless there is an emergency, the tenant is present and consents, or the tenant has abandoned or surrendered the premises, “entry may not be made during other than normal business hours unless the tenant consents to an entry during other than normal business hours at the time of entry.” (Civ. Code, § 1954, subds. (b), (e).)

The landlord may not abuse the right of access or use it to harass the tenant. (Civ. Code, § 1954, subd. (c).)

Here, Plaintiff presents evidence that Plaintiff is the landlord of the Premises, and Plaintiff provided substantially code-compliant notice under Civil Code section 1954 to Defendant to seek access to the Premises in July to no avail. (See Motion, Exh. List, Exhs. 6-8, Goddard Decl., Supplement, Supp. Goddard Decl.; Compl.)

Notably, Defendant did not file an Opposition or response to the Motion demonstrating any reason for Plaintiff’s access to the Premises to be denied.

In light of the evidence before the Court and the lack of Opposition to the Motion, the Court finds sufficient grounds exist for a court order compelling Plaintiff to comply with statutory notice requirements and access the Premises.

As such, the Motion is GRANTED as to the request to compel access to the Premises.

However, the Court finds the scope of access requested in the Motion and outlined in the Proposed Order is overbroad and impermissible in the instant circumstances. Plaintiff requests the Court issue an order that effectively requires Defendant to change the locks on the Premises' door by way of changing the electronic door code; however, Civil Code section 1954 does not make any reference to mandating tenants to modify or alter their locks or door codes to ensure landlord entry and/or access to the premises. Plaintiff fails to raise any legal authority demonstrating otherwise. While the Court acknowledges the Civil Code allows for tenant lock changes in certain limited circumstances – such as domestic violence or safety situations (see e.g., Civ. Code, §§ 1941.5, 1941.6) – such circumstances have not been shown to be present here.

Moreover, to the extent Plaintiff may be asserting that Defendant violated certain rent control ordinances and/or the Civil Code by impermissibly changing the locks without prior authorization, the Court neither finds this argument properly raised in the instant Motion nor that the instant Motion is adequately supported to make this request.

Finally, the Court finds the Proposed Order's language regarding tenant-initiated communications is unsupported in the Motion and exceeds the scope of Civil Code section 1954.

Thus, the Motion's request is GRANTED as to the request to compel access to the Premises subject to the following specific terms:

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Plaintiff

is to comply with statutory notice requirements in order for Plaintiff and/or Plaintiff's authorized representatives, contractors, inspectors, and agents to access the Premises.

-

Plaintiff

may only access the Premises for lawful purposes – including making necessary or agreed repairs, decorations, alterations, or improvements – or emergencies.

(See Civ. Code, § 1954.)

-

Defendant

is to provide Plaintiff and Plaintiff's authorized representatives, contractors, inspectors, and agents access to the Premises following Plaintiff's compliance with Civil Code section 1954 notice and purpose requirements.

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After

receiving notice, Defendant may propose alternate days for access. Should Defendant provide alternate days for granting Plaintiff and/or Plaintiff's authorized representatives, contractors, inspectors, and agents access to the Premises, Defendant must provide alternate days within a reasonable window from the date noticed by Plaintiff, not to exceed 4 business days absent exceptional circumstances.

-

Plaintiff

and Plaintiff's authorized representatives, contractors, inspectors, and agents may access the Premises only during the normal business hours of 8:30 a.m. to 4:30 p.m. unless Defendant consents to other times of entry. (See e.g., Civ. Code, § 1954, subs. (b), (e); *Dromy v. Lukovsky* (2013) 210 Cal.App.4th 278, 286.) The Court defines normal business hours under the facts and circumstances of the instant case and in balancing the competing policies incorporated in Civil Code section 1954. (See *Dromy*, supra, 210 Cal.App.4th at p. 286.)

Sanctions

As to the Motion's request for sanctions, Plaintiff's request for sanctions under Code of Civil Procedure section 128.5 is not brought in a separate motion as required by Code of Civil Procedure section 128.5, subdivision (f)(1)(A). Further, to the extent Plaintiff bases the request for sanctions on a "related" separate case, the Court finds the instant action has not been ordered related to any other case. Finally, the Court finds Plaintiff's reliance on Discovery Act sanctions provisions inapt to the instant circumstances as the Motion's request does not involve discovery or the Discovery Act. For all these reasons, the Court finds the Motion's request for sanctions is procedurally and substantively deficient.

Thus, the Motion is DENIED as to the request for sanctions.

IV.

Conclusion

& Order

For the foregoing reasons, Plaintiff Daniel Goddard's unopposed Motion to Compel Access and for Monetary Sanctions is GRANTED as to the request to compel Plaintiff's access to real property as limited herein and DENIED as to the request for sanctions.

Plaintiff is to submit a new Proposed Order to the Court in conformance with the ruling herein within 5 days of this Court's Order.

Moving party is ordered to give notice.